

25STCV04572 25STCV04572

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-10

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Case Number: 25STCV04572 Hearing Date: July 10, 2026 Dept: 510

No. 5 - Collect Access LLC v. Belenco

Quartz USA Inc., et al.

Plaintiff

Collect Access LLC's Request for Default Judgment

Plaintiff Collect Access

LLC requests court judgment by default against Defendants Belenco Quartz USA Inc. and Abdel-Khalek Said El-Assadi. Plaintiff's application for default judgment meets all but one requirement.

Plaintiff

seeks prejudgment interest of 18% on the \$90,557.74 damages owed under the contract. While the Court acknowledges that banks generally are exempt from constitutional usury interest rate restrictions, the attached contract does not contain a provision providing for an 18% interest rate. Plaintiff should either attach a clearer photocopy of the written agreement and indicate to the Court where the 18% interest rate provision is located, or modify the request to recover the default 10% prejudgment interest rate.

Disposition

Plaintiff's request for

default judgment is denied without prejudice.